

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Townsend	Team: Squad #07	CCRB Case #: 201404540	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Sunday, 04/06/2014 5:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/6/2015	Precinct: 121		
Date/Time CV Reported Fri, 05/09/2014 2:34 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 05/09/2014 2:34 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. CPT Kenneth Noonan	00000	924257	121 PCT
3. DT2 Anthony Favara	01278	883491	ESS 05
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Jeffrey Maira	16359	944113	121 PCT
2. POM Antonio Cannata	18584	943044	121 PCT
3. SGT Dmitry Brushnivsky	01417	936251	121 PCT
4. DTS Robert Brager	06601	922021	ESS 05

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered § 87(2)(b) in Staten Island.	A . Exonerated
B . An officer	Off. Language: At § 87(2)(b) in Staten Island, an officer made remarks to § 87(2)(b) based upon the sex of § 87(2)(b)	B . Officer(s) Unidentified
C . An officer	Force: At § 87(2)(b) in Staten Island, an officer used physical force against § 87(2)(b)	C . Officer(s) Unidentified
D . DT2 Anthony Favara	Off. Language: At § 87(2)(b) in Staten Island, Det. Anthony Favara made remarks to § 87(2)(b) based upon race.	D . Unsubstantiated
E . DT2 Anthony Favara	Discourtesy: At § 87(2)(b) in Staten Island, Det. Anthony Favara spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . DT2 Anthony Favara	Force: At § 87(2)(b) in Staten Island, Det. Anthony Favara used physical force against § 87(2)(b)	F . Unfounded
G . CPT Kenneth Noonan	Off. Language: At § 87(2)(b) in Staten Island, Captain Kenneth Noonan made remarks to § 87(2)(b) based upon the sex of § 87(2)(b)	G . Unsubstantiated
H . Officers	Abuse: At § 87(2)(b), officers did not obtain medical treatment for § 87(2)(b)	H . Unfounded
I . An officer	Abuse: At the 121st Precinct Stationhouse, an officer did not obtain medical treatment for § 87(2)(b)	I . Officer(s) Unidentified
J . Officers	Discourtesy: At the 121st Precinct Stationhouse, officers spoke discourteously to § 87(2)(b) and § 87(2)(b)	J . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
K . An officer	Off. Language: At the 121st Precinct Stationhouse, an officer made remarks to § 87(2)(b) based upon race.	K . Officer(s) Unidentified

Case Summary

On April 6, 2014 at 5 p.m., PO Jeffrey Maira and PO Antonio Cannata responded to a 911 call regarding a knife at § 87(2)(b) in Staten Island. They spoke with § 87(2)(b) who stated that her husband and landlord of the building, § 87(2)(b) was in § 87(2)(b)'s apartment and § 87(2)(b) heard yelling in the apartment and the word “knife.” § 87(2)(b) refused multiple requests to open her door, so PO Maira and PO Cannata called for backup, and eventually Sgt. Dmitri Brushnivsky and Captain Kenneth Noonan of the 121 Precinct, Det. Anthony Favara and Det. Robert Brager of ESU, the Hostage Negotiation Team, TARU and additional officers responded. About an hour into the incident, § 87(2)(b) climbed out of the window, and TARU determined that § 87(2)(b) was still in her apartment with her boyfriend, § 87(2)(b) and her two young children.

Between 9 p.m. and 10 p.m., Det. Favara and Det. Brager were authorized to break down the door and enter the apartment (**Allegation A**). § 87(2)(b) stated that an unidentified officer, “PO3”, called her a “fucking bitch,” (**Allegation B**) and grabbed her by her hair bun when escorting her from the apartment (**Allegation C**).

Det. Favara and Det. Brager entered the back bedroom where they apprehended § 87(2)(b). § 87(2)(b) stated that Det. Favara called him a “fucking nigger” and a “fucking scumbag” (**Allegation D**). He further alleged that Det. Favara stated to him, “You could have made this fucking easier” (**Allegation E**). § 87(2)(b) alleged that once he was handcuffed, Det. Favara stepped on his right arm, kicked him in the face, stepped on his face, and punched his face (**Allegation F**).

§ 87(2)(b) was taken to an ambulance where Captain Noonan reportedly opened the door and stated to her, “Fuck you, bitch” (**Allegation G**). § 87(2)(b) was transported to § 87(2)(b) for a psychiatric evaluation. § 87(2)(b) alleged that she requested a physical exam but that the officers refused to let her get physical treatment, as she was at the hospital for psychiatric treatment only (**Allegation H**). § 87(2)(b) was then transported to the 121st Precinct Stationhouse.

At the stationhouse, § 87(2)(b) reportedly requested medical attention from an officer but did not receive any (**Allegation I**). The officer allegedly called him a “nigger” (**Allegation B**) and a “motherfucker” (**Allegation J**). § 87(2)(b) alleged that an officer told her to “shut the fuck up” (**Allegation J**).

§ 87(2)(g), § 87(2)(b)

§ 87(2)(g), § 87(2)(b)

§ 87(2)(g), § 87(2)(b)

§ 87(2)(g), § 87(2)(b)

§ 87(2)(g), § 87(2)(b)

This case was originally investigated by Investigator Krista Kano. Upon her resignation from the agency, the case was reassigned to Assistant Supervisor of Investigations Diana Murray.

Mediation, Civil and Criminal Histories

As of February 23, 2015, the Notice of Claim inquiry is pending. The resulting criminal cases against § 87(2)(b) and § 87(2)(b) remain open (encl. 8A-8O). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- Det. Favara and Captain Noonan have been members of the service for 30 and 15 years, respectively, and there are no substantiated CCRB allegations against them. § 87(2)(g)
- § 87(2)(b) was previously a victim § 87(2)(b). This is the first CCRB complaint involving § 87(2)(b) (encl. 3C-3D).

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Identification of Subject Officers

- § 87(2)(g)
- § 87(2)(b) stated that the officer who called her a “fucking bitch” and grabbed her by her hair bun was one of the three officers to first knock on her door. The investigation identified these officers as PO Maira and PO Cannata. However, by all officer accounts, PO Maira and PO Cannata were outside of the building during the entry and never interacted with § 87(2)(b) on the street. Sgt. Brushnivsky, Det. Brager and Det. Favara were also at the door at some point during the incident, but they do not match the description of the subject officer. § 87(2)(b) stated that the officer who handcuffed him was later at the stationhouse and called him a “motherfucker” and did not provide him with medical attention. Det. Favara acknowledged being the only officer to handcuff § 87(2)(b) however, he was never at the 121st Precinct Stationhouse, as he resumed patrol immediately after the incident. § 87(2)(g)
- § 87(2)(b) attributed those allegations to the officer who placed him on the ground, which Det. Favara acknowledged doing.
- § 87(2)(g) § 87(2)(b) described a 5’11” tall, 300 to 360-pound, bald, white man in his late 40s with a reddish complexion, blue eyes, and a large belly, wearing a white uniform shirt. The description was read to PO Maira who stated that the description matched Captain Noonan, who was present at the time of this incident.
- § 87(2)(g) § 87(2)(b) stated that more than one officer took her to the hospital. However, by all officer accounts, only PO Cannata took § 87(2)(b) to the hospital. PO Cannata was relieved and did not see the point at which § 87(2)(b) left the hospital. § 87(2)(g)
- § 87(2)(b) The officers’ discourteous language was prompted when § 87(2)(b) told them to stop using force against two individuals, identified by the CCRB as § 87(2)(b) and § 87(2)(b) § 87(2)(b) in the holding cell area. § 87(2)(g)

Allegation A—Abuse of Authority: Officers entered § 87(2)(b) in Staten Island.

It is undisputed that § 87(2)(b) § 87(2)(b) called 911 and information was relayed to PO Maira and PO Cannata that § 87(2)(b) § 87(2)(b) was being held, possibly at knife point, inside of § 87(2)(b) in Staten Island. Furthermore, § 87(2)(b) refused to open the door after numerous commands to do so over the course of four to five hours and her children were also in the apartment. As a result, officers entered the apartment.

§ 87(2)(b) stated that § 87(2)(b) § 87(2)(b) was in her apartment fixing her floor when § 87(2)(b) came to the apartment. About an hour later, officers came to her door and instructed her to open her door, which she refused to open for four to five hours. Officers broke her door down and entered the apartment (encl. 5E-5G). § 87(2)(b) confirmed these assertions, and contended that he did not argue with § 87(2)(b) at any point (encl. 5Q-5R).

PO Maira and PO Cannata stated that they responded to a 911 call regarding a knife and spoke with § 87(2)(b) § 87(2)(b) who told them that she heard yelling and the word “knife” from the second floor apartment. PO Maira and PO Cannata asked § 87(2)(b) to open the door, but she refused. They called for backup, and Sgt. Brushnivsky responded, who then called for ESU, TARU and the Hostage Negotiation Team (encl. 6M-6N, 6U). Their CCRB statements were confirmed by their memo books (encl. 6B, 6Q). PO Maira prepared the complaint reports and the arrest reports (encl. 6C-6J) which all noted that they unlawfully imprisoned § 87(2)(b) § 87(2)(b).

Sgt. Brushnivsky’s CCRB statement, memo book entries, and Unusual Occurrence Report were consistent with PO Maira and PO Cannata’s statements (encl. 6X-6GG), as were Det. Brager’s, Det. Favara’s and Captain Noonan’s CCRB statements and memo book entries (encl. 6II-6ZZ).

§ 87(2)(b)

The following three requirements must be met to apply an emergency exception to the warrant requirement: (1) The police must have a reasonable belief that there is an immediate need to protect life or property; (2) the entry must not be primarily motivated to make an arrest or seize evidence; and (3) there must be a reasonable basis to associate the emergency with the location being entered. People v. Greenleaf, 222A.D.2d 838 (1995) (encl. 2A-2B).

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that **Allegation A** be closed as *exonerated*.

Allegation B—Offensive Language: At § 87(2)(b) in Staten Island, an officer made remarks to § 87(2)(b) based upon the sex of § 87(2)(b)

Allegation C—Force: At § 87(2)(b) in Staten Island, an officer used physical force against § 87(2)(b)

Allegation I—Abuse of Authority: At the 121st Precinct Stationhouse, an officer did not obtain medical treatment for § 87(2)(b)

Allegation J—Discourtesy: At the 121st Precinct Stationhouse, officers spoke discourteously to § 87(2)(b) and § 87(2)(b)

Allegation K—Offensive Language: At the 121st Precinct Stationhouse, an officer made remarks to § 87(2)(b) based upon race.

§ 87(2)(g)

§ 87(2)(b) All interviewed officers denied committing or witnessing these allegations.

It is therefore recommended that **Allegations B, C, I, J, and K** be closed as *officer(s) unidentified*.

Allegation D—Offensive Language: At § 87(2)(b) in Staten Island, Det. Anthony Favara made remarks to § 87(2)(b) based upon race.

Allegation E—Discourtesy: At § 87(2)(b) in Staten Island, Det. Anthony Favara spoke discourteously to § 87(2)(b)

Allegation G—Offensive Language: At § 87(2)(b) in Staten Island, Captain Kenneth Noonan made remarks to § 87(2)(b) based upon the sex of § 87(2)(b)

§ 87(2)(b) alleged that Det. Favara stated to him, “Fucking nigger,” “Fucking scumbag,” and, “You could have made this fucking easier” (encl. 5Q-5R). § 87(2)(b) was not present for the aforementioned comments.

§ 87(2)(b) stated that while she was in the ambulance, Captain Noonan walked up to her and said, “Fuck you, bitch. I’m going to make sure you never get your children back” (encl. 5E-5G). § 87(2)(b) was not present for this interaction.

Det. Favara denied saying to § 87(2)(b) “Fucking nigger,” “Fucking scumbag” and “You could have made this fucking easier” (encl. 6MM-6NN). His partner, Det. Brager, denied hearing Det. Favara make those statements (encl. 6TT-6UU). Although Captain Noonan confirmed that he was present and watched § 87(2)(b) enter an ambulance, he denied stating to her, “Fuck you bitch,” or even addressing § 87(2)(b) at the scene (encl. 6XX-6ZZ). PO Cannata, who was in the ambulance with § 87(2)(b) at the time Captain Noonan allegedly cursed at her, denied hearing Captain Noonan use any profanity (encl. 6U).

§ 87(2)(g)

It is therefore recommended that **Allegations D, E, and G** be closed as *unsubstantiated*.

Allegation F—Force: At § 87(2)(b) in Staten Island, Det. Anthony Favara used physical force against § 87(2)(b)

§ 87(2)(b) stated that after he was handcuffed, Det. Favara stepped on his right arm, kicked him in the face, stepped on his face, and punched his face. As a result, § 87(2)(b) had a scab on his forehead. Once he was at Riker’s Island, he had an x-ray showing that his hand was broken and fractured. He had hand surgery and wore a cast for three months (encl. 5Q-5R).

Det. Favara denied using any force against § 87(2)(b) and said that § 87(2)(b) was not physically resistant (encl. 6MM-6NN). Det. Brager confirmed that § 87(2)(b) was only minimally resistant and denied seeing Det. Favara use physical force against § 87(2)(b) (encl. 6TT-6UU).

§ 87(2)(b) s arrest photo shows mild redness above his left eyebrow (encl. 5M). § 87(2)(b) went to § 87(2)(b) for the first time from Riker’s Island on § 87(2)(b) days after this incident. § 87(2)(a) PHL § 18(6)

§ 87(2)(g)

It is therefore recommended that **Allegation F** be *unfounded*.

Allegation H—Abuse of Authority: At § 87(2)(b) officers did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) stated that she was taken to § 87(2)(b) and that she requested a physical examination, which she was denied by officers (encl. 5E-5G).

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g). It is therefore recommended that **Allegation H** be closed as *unfounded*.

Team: Pod 7

Investigator: _____
Signature Diana Murray Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date